



File No.: EXP202304834

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 30, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the COLEGIO NOTARIAL DE ARAGÓN (hereinafter, the claimed party), through the Agreement that is transcribed:

<<



File No.: EXP202304834

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, A.A.A. or claiming party) filed a complaint with the Spanish Agency for Data Protection on March 7, 2023, regarding a possible infringement of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, GDPR) attributable to the COLEGIO NOTARIAL DE ARAGÓN with NIF Q5063003G (hereinafter, COLEGIO NOTARIAL DE ARAGÓN or claimed party).

The facts brought to attention through the complaint are as follows:

The complainant, ***POSITION.1, states that on 02/14/2023, a time control system using fingerprint recognition was implemented that does not comply with data protection regulations, as an impact assessment of the processing operations on the protection of personal data has not been carried out. He adds that each worker must register their entry and exit at the College and not only those that occur at the beginning and end of the workday, and that, additionally, every Friday, workers must send a report of compliance with the schedules, indicating the time of entry and exit, to the email address of the Board of Directors (...)

The claiming party states that the implementation of the system is incorrect, as it is not based on a decentralized storage system where the collected fingerprint is incorporated into a smart card held by the employee.

On the other hand, he indicates that, in addition to installing the aforementioned system, surveillance cameras have been installed in areas exclusively used by workers.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGGDD), the aforementioned complaint was forwarded to COLEGIO NOTARIAL DE ARAGÓN, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 04/21/2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: On 05/19/2023, a letter from the Notarial Certification Agency, S.L.U. (ANCERT), acting in its capacity as Data Protection Delegate (DPD) of the claimed party, was received, responding to the issues raised in the forwarding of the complaint and which states, in summary, the following:

- The College is a public law corporation protected by law and recognized by the State, with its own legal personality and full capacity to fulfill its purposes, which currently has eleven employees (although as of February 14, two of them were on sick leave).
- It confirms that it is true that to control the attendance and access of its employees to said premises, the College has recently implemented a time control management system using a system based on

digitized fingerprint recognition, managed with the corresponding software installed on the College's server, in order to comply with Royal Decree-Law 8/2019, of March 8, on urgent measures for social protection and the fight against labor precariousness in the workday. However, it notes that the system still does not correctly issue the corresponding reports on the daily collection of employees' time data by the reader.

- On the date indicated by the complainant, what was done was for the Board of Directors to agree on the need to implement said system and that, in fact, it began to be implemented in the following days.
- It qualifies as manifestly false the assertion that the College has installed surveillance cameras in areas exclusively used by workers, as there are only two cameras installed, located at each of the two access doors to its premises (one, located at the main access to the premises).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/39

3/39

School and the other installed at the access through the side door or access to the warehouse) and two others at the entrance of the "Historical Archive of Protocols" room on the first floor of the School, all for surveillance and security purposes.

- Regarding the weekly report mentioned in the claim, it states that the School required on February 15, in a communication, to prepare said "report on compliance with schedules, indicating the entry and exit time of each employee," but not to the employees, rather to the Chief Officer of the School, as a temporary measure until the system was operational, which remains in effect because as of the current date it is still not functioning properly. This weekly document is not, in fact, a manual record of the employees' entry times, but merely notes any particularly relevant or exceptional events that occurred during the week in relation to the employees' schedules (for example, an unjustified delay, a request for special leave to be absent, etc.), and is sent to the specified email address.

- The School, in its prior decision to install the biometric system, did take into account the impact on privacy of biometric access control and work schedule systems on employees, as it had carried out the corresponding and mandatory data protection impact assessment of said processing, in its capacity as the data controller.

- From the very moment the biometric data processing was carried out, the School had updated its Record of Processing Activities.

- It denies having committed any irregularity and states that, although it is true that prior to the installation of said system and also prior to Royal Decree-Law 8/2019, the time control of employees had been carried out manually using a paper sheet on which employees daily recorded their entry and exit times from the offices, (...) this recording system was deemed not objective and reliable as evidence of time records, and therefore a more secure system was implemented to avoid any possibility of subjectivity and arbitrariness in the recorded entries in pursuit of strict compliance with the employees' working hours.

The responding party considers that the claim presented should be inadmissible as it manifestly lacks foundation and, therefore, falls within the cases for inadmissibility of a claim provided for in Article 65.2 of the LOPDGDD. This is based on the following arguments:

- It considers that the processing of biometric data is legitimized by Article 34.9 of the Workers' Statute (Royal Legislative Decree 2/2015, of October 23, which approves the consolidated text of the Workers' Statute Law), as amended by Royal Decree-Law 8/2019, of March 8, on urgent measures for social protection and the fight against labor precariousness in the working day.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/39

- The College carried out the corresponding data protection impact assessment (DPIA), including a risk management analysis and the weighing of concurrent rights in the tests of necessity, suitability, and proportionality, issuing the corresponding report on 6/2/2023 in which a favorable decision was adopted for the processing of data.
- Once the agreement for the installation of the system was adopted by the Board of Directors held on February 14, the employees were informed, by the person who was then temporarily occupying the position of ***POSITION.3, B.B.B. (to whom the Board of Directors had previously communicated the agreement), on how they should use the newly implemented system for managing attendance control and access to the College's premises, and providing them with the information required by Article 13 of the General Data Protection Regulation and Article 11 of the LOPDGDD.
- The process of configuring the system by the provider (recording fingerprints, work schedules to implement in the system, etc.) began in the days following February 15; however, to date, the system has not been fully operational due to various incidents related to the installed software and the College's own server.
- Subsequently, on March 22, the College provided information again to the employees present at that time, but this time in writing. It is stated that none of the College's employees, from February 14, 2023, to the present date, have exercised any rights regulated in Articles 15 to 22 of the GDPR, not even the right to object to the provision of biometric data.
- From the very moment the processing of biometric data was carried out, the College proceeded to update its Record of Processing Activities, which is published on its website: <https://aragon.notariado.org/portal/documents/1245687/1245718/Registro+de+Actividades+de+Tratamiento.pdf/e84343d3-0edb-e52d-e531-15f716ce135b?t=1629800170472>).
- It points out that the Supreme Court ruling of July 2, 2007 (Rec. 5017/2003) has deemed the processing of biometric data carried out by the Administration for the time control of its public employees to be legitimate, without the need for prior consent from the workers. In the case of the Notarial College, it is particularly justified that the implementation of the fingerprint reading system is necessary because the members of the College's Board of Directors, composed of nine Notaries, carry out their workdays not at the College, but at their own Notaries located in various towns within the Autonomous Community of Aragon, and therefore cannot exercise in situ the legal functions of labor control as they do not fulfill their workday at the College.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/39

-

Considers that the processing is in accordance with the regulations on personal data protection because:

- The worker has been informed
- The principles of purpose limitation, necessity, proportionality, and data minimization are respected. It insists that the purpose of the processing is to comply with Royal Decree-Law 8/2019, of March 8, on urgent measures for social protection and the fight against labor precariousness in working hours, which only processes the strictly necessary biometric data to fulfill the purpose established by the applicable labor regulations for the time control of access to the College by its employees (principle of minimization). Regarding the principle of suitability, it states that the processing of biometric data allows the College to fulfill, with security guarantees, its obligations regarding the labor management of time control of the attendance and access of its employees to its premises in order to comply with Royal Decree-Law 8/2019, thus considering that the measure is suitable. Concerning the principle of necessity, it indicates that the necessity of the processing by the College is based on its obligation to ensure and minimize security and reliability risks in the time registration of its employees, based on its responsibility and obligation established by the Workers' Statute. Furthermore, in the case of the College, it reiterates the special need for the implementation of the fingerprint reading system is also justified because the members of the Board of Directors of the College carry out their working hours,

not in the College, but in their own Notaries located in any town in the Autonomous Community of Aragón, being unable to verify on-site the compliance with working hours in the College. Regarding the principle of proportionality, it states that the College has analyzed the application of other measures for time control of employees that could minimize risks to the rights and freedoms of employees using non-biometric systems, such as the use of cards or applications through personal alphanumeric codes or passwords, finding that these would not ensure the College a secure and reliable verification of the unique identification and authentication of users because they could be easily exchanged. Therefore, given the impossibility of applying other less intrusive measures that could provide the same degree of effectiveness, it can be stated that the processing carried out through the use of fingerprint verification systems for the employees of the College is justified. They indicate that a balancing of the conflicting rights has been carried out: on one hand, the right to data protection, and on the other, the right to the labor control powers of the College established by labor regulations - specifically Article 20.3 of the Workers' Statute (...) considering that the right to labor control prevails at all times over the right to data protection, without prejudice to the fact that it is essential to apply the appropriate data protection guarantees, since the GDPR also requires that in these cases the norm allowing this processing must also establish such guarantees.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/39

- As certified by the installing company, in the system installed by the College, biometric data is stored as biometric templates. That is, the system management software stores the hash (pattern or biometric template) provided by the fingerprint terminal, which is linked to the end user with the employee's user ID in a table for biometric data. The biometric system uses such mechanisms based on encryption technologies to prevent unauthorized reading, copying, modification, or deletion of biometric data. Thus, the fingerprint system ensures that it is impossible to obtain the actual image of the fingerprint from the pattern stored in the terminal reader, as no digital photograph of the fingerprint is taken; rather, a mathematical relationship is established between certain points of the fingerprint (singularities, characteristic points, or 'minutiae'), resulting in a set of numbers that serves to unequivocally identify each person. Therefore, the system used is adequately reliable, as the capture of the fingerprint is performed by the terminal reader through an optical reading of the singularities (for example, a ridge that bifurcates into two, the core of the fingerprint, ridges forming a 'delta', etc.) present on the surface of the fingerprint. These singular points are related to each other through a mathematical encryption algorithm, generating a template of a number of bytes representative of that fingerprint. The characteristic of biometric systems is to ensure the non-acceptance of an erroneous sample (FAR - False Acceptance Rate) rather than the non-acceptance of a correct sample (FRR - False Rejection Rate). Therefore, dismissing the possibility of fingerprint forgery, the possibility of accepting an invalid fingerprint is a value low enough to be more than reasonably acceptable. Biometric data is stored in the database of the time control software located on a server at the College's facilities as well as on the terminal.

- The biometric system of the College and the chosen security measures ensure that it is not possible to reuse biometric data for another purpose.

- The biometric system of the College uses mechanisms based on encryption technologies to prevent unauthorized reading, copying, modification, or deletion of biometric data.

- The biometric system is designed so that the College can revoke at any time the identity link between the generated template and the employee, in the case, for example, that an employee leaves the College.

- The specific technology used by the system makes such interconnection of the biometric databases impossible, as they are stored on the terminal and the College's server, also preventing the disclosure of the data.

- The biometric data of the employees of the College will be deleted when they are no longer linked to the purpose that motivated their processing in accordance with the applicable labor regulations for time

control of access to the College by its employees. And likewise, they will be subject to processing during the

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/39

the time required by the aforementioned labor regulation, which establishes that records must be kept for four years.

Regarding the legal basis for the processing of personal data, it considers that the processing of biometric data (digitized fingerprint or template) is legitimized by articles 6.1.b) and 9.1 and 9.2b) of the GDPR, in relation to article 20 and 34 of the Workers' Statute (Royal Legislative Decree 2/2015, of October 23, which approves the consolidated text of the Workers' Statute) and Royal Decree-Law 8/2019, of March 8, on urgent measures for social protection and the fight against labor precariousness in working hours.

As for the purpose of the processing, it states that it is the management of attendance control and labor access of its workers to the premises of the Notarial College of Aragon through digitized fingerprint with the aim of complying with Royal Decree-Law 8/2019, of March 8, on urgent measures for social protection and the fight against labor precariousness in working hours. It is also informed that if the aforementioned biometric data is not provided, this circumstance implies the impossibility of accessing the premises of the Notarial College of Aragon.

It understands that the guarantees of the implemented system are adequate, given that biometric data is stored as biometric templates and reiterates the characteristics of the system already mentioned previously.

Regarding the categories of data subjects, it confirms that they are the workers of the College and the information provided to them about the processing of the data is as follows:

- Information on the implementation of the attendance control and labor access management system with the aim of complying with Royal Decree-Law 8/2019, of March 8, on urgent measures for social protection and the fight against labor precariousness in working hours.
- The information referred to in article 13 of the GDPR is provided: data controller, legitimacy, purpose of processing, possible recipients of the data, retention period, and details of the data protection officer.

It also points out that given that this is a continuous process, the College has established responsibilities for the implementation of measures within an action plan, conducting periodic controls until full implementation, with ***POSITION.2, C.C.C., being the person designated by the Board of Directors of the College to assume such responsibilities in relation to the biometric system, of which they are the third auditor. It should also be considered, as indicated in the report, that in the event of substantial changes in the processing analyzed at a technical or organizational level, the DPIA should be reviewed or a new DPIA should be conducted if appropriate.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
8/39

In relation to the claims made by the complainant regarding the installation of video surveillance cameras in areas exclusively used by workers, it rejects this assertion and states that the cameras have been installed solely for surveillance purposes in order to preserve the safety of individuals and property, as well as their facilities. It denies that the images obtained are used for the exercise of control functions over the workers, and that sound recording systems or video surveillance have been installed in areas designated for the rest or recreation of workers, such as changing rooms, restrooms, dining areas, and similar places.

It confirms that there are only two image recording cameras (not sound) installed, located at each of the two access doors to the premises (one located at the main entrance to the College and the other

installed at the side entrance or access to the warehouse) and two other cameras at the entrance of the "Historical Archive of Protocols" room on the first floor of the College. In all four cases, corresponding informational signs have been placed in the monitored areas where the cameras were installed in order to comply with the information duty provided for in Article 12 of the GDPR, placed on the same side of the doors and, therefore, sufficiently visible, identifying at least the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR.

They indicate that the installation of the video cameras located at the main and side entrances of the College is based on strict security reasons, having been repeatedly evaluated by the Board of Directors for installation after the occurrence of (...) and with a clearly deterrent purpose.

Along with this document, the following documentation was provided:

- Impact assessment report on data protection (EIPD) regarding the processing of biometric data through the use of a time control system based on fingerprint recognition from the Illustrious Notarial College of Aragon, dated 06/02/2023.
- Copy of the communications (a total of 9) addressed to employees with acknowledgment of receipt, which includes the date, signature, and ID number of the recipient. In the response document to the transfer action, it states that there were 9 employees who, on February 14, were in a situation of active employment and two in a situation of sick leave, a situation that continues at the time the response document was addressed. This fact motivates, as they indicate, that at that moment they had not received said document since their fingerprints had not been recorded in the system either.
- Certificate from the entity ***EMPRESA.1, with ***NIF.1, dated 17/05/2023, indicating that (...) the presence control system installed in the notarial college does not store any fingerprint as such; it transforms into a binary code that, through an algorithm, converts that fingerprint into a code only understandable by the installed device. Each of the machines uses a different algorithm, so it cannot be transferred from one to another, and none stores fingerprints. To transfer the data, there are templates that only...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/39

knows how to interpret the brand management system software. In the event of a user being deleted, all their data is removed, and only the time records are retained as stipulated by law.

-

Document with an informational sign indicating a video surveillance area, in which the responsible party is the Illustrious Notarial College of Aragon, the address where data protection rights can be exercised, information regarding the legitimacy of the processing—compliance with a mission of public interest—its purpose—ensuring security—indication that the images are not transferred to third parties, reference to the rights recognized in Articles 13 to 22 of the GDPR, and the possibility of filing a complaint with the AGPD and the retention period of the images for a maximum of 30 days.

THIRD: On 07/06/2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VIII of the LOPDGDD.

From the preliminary investigative actions carried out, the following points can be highlighted:

On November 13, 2023, the respondent was requested to provide additional information, and on December 13, 2023, their response was received, in which the following is stated:

Regarding the requested information related to the time control management system based on fingerprint recognition, and specifically concerning the current status of the system, we must affirm that this College has recently made the definitive decision not to implement said system as a tool for monitoring the working hours of its employees.

This decision has been made for the reasons outlined below. The first of these is that, as the data protection officer indicated on May 18, 2023 (within the framework of procedure AT/01887/2023), once the corresponding system software was installed on the College's server, the fundamental part of the functionalities provided by the product did not work correctly, as the system did not generate the corresponding reports on the daily collection of time data from the employees' fingerprint reader, that is, the reports on the employees' entry and exit times, which were evidently the main reason for implementing such a system. Secondly, the installation of said software also interfered with the functioning of other applications already installed on that server, which led the College to first disable the software and subsequently uninstall it from that server. Therefore, in light of such difficulties after a few months of its implementation, it has decided, definitively, not to proceed with its use.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/39

to reinstate said biometric time control system nor the provider of the same nor any other.

Thus, on December 1, 2023, at the request of said College, an employee of the provider and installer of the system appeared on-site and removed the fingerprint reader of said system and proceeded to uninstall the aforementioned management software of the system.

Document No. 1 of the entry with registration number REGAGE23e00084469463 is provided, which includes the work report from the provider and installer of the system certifying that the system is dismantled and the management software is uninstalled.

Furthermore, said entity subsequently proceeded to destroy the binary codes used as biometric templates obtained from the fingerprints for the authentication of the employees of the College, which were stored in said reader by the management software of said system.

Document No. 2 of entry REGAGE23e00084469463 is provided, which is the certificate issued by the provider and installer of the system that certifies the above.

Additionally, the College adds:

This decision has also been influenced by the fact that the entity we are addressing issued the "GUIDE ON PRESENCE CONTROL TREATMENTS THROUGH BIOMETRIC SYSTEMS" last November, which among its conclusions indicates that regarding the treatment of presence control through biometric identification or authentication techniques, the data controllers must take into account that the use of biometric identification and authentication technologies in presence control constitutes a high-risk treatment that includes special categories of data, and that in the implementation of the presence control treatment, the principles of data minimization and protection by design and by default must be complied with, using equivalent, less intrusive alternative measures, and processing the least additional data.

For this reason, henceforth, the College has decided to use a less intrusive time control system for data protection, which will consist of a computer software program that will allow the employee to clock in using a numerical code, once they log in with the corresponding computer assigned to each employee.

Video Surveillance Cameras

Regarding what the claimant states in their complaint: "in addition to installing video surveillance cameras in areas exclusively used by workers," within the framework of the investigative actions, on October 31, 2023, the claimant is requested the following information in this regard:

- Recent graphic documents, duly dated, that allow appreciating that the affected devices are currently operational, their characteristics, and their specific location.
- If an informative device has not been placed in a sufficiently visible location that identifies the existence of the treatment, the identity of the controller, and the possibility of exercising the rights provided in the

C/ Jorge Juan, 6

www.aepd.es

Articles 15 to 22 of Regulation (EU) 2016/679 or that includes a connection code or internet address to this information must be accompanied by recent graphic documents, duly dated, that allow for the confirmation of their absence in the facility's environment.

-

Copy of the document provided to the workers informing them of the labor control policy through these devices, if applicable. Documentary evidence regarding the processing of the data of the workers captured by the cameras must also be attached. It will also be noted whether any disciplinary/sanctioning file or dismissal of a worker has occurred based on such data processing, along with references to them.

On November 10, 2023, the response from the complainant party was received at the electronic headquarters of the Agency (entries with registration numbers REGAGE23e00076322973, REGAGE23e00076430979, and REGAGE23e00076418762):

-

The following photographs are included:

o

(...)

-

It is indicated that there are two informational signs, one at the general access door, the glass door visible in the courtyard (photograph 7461), and another on the side street by the access in photograph 7457, a door that is noted to "rarely opens, once a year."

-

Finally, the complainant party states that no document has been provided to the school employees informing them of the labor control policy through these devices, that there is no documentary evidence regarding the processing of the data of the workers captured by the cameras, and that they also do not have access to the captured images.

Additionally, on November 13, 2023, information regarding the installed video surveillance cameras at the school was requested. On December 13, 2023, the response was received, and the most relevant content is reproduced below:

-

(...)

-

Photographs of the installation and placement of each of the cameras are provided as Doc. No. 3 of the entry with registration number REGAGE23e00084469463 and Doc. No. 4, Doc. No. 5, and Doc. No. 6 of the entry with registration number REGAGE23e00084470034.

As Doc. No. 10 of the entry with registration number REGAGE23e00084470495, the photograph of the informational sign placed at the access to the "Historical Archive of Protocols" room is provided, Doc. No. 11 of the entry with registration number REGAGE23e00084470495, and at the accesses through the main door and the side door to the school.

The cameras have been installed at the school exclusively for surveillance purposes to preserve the safety of individuals and property, as well as its facilities, since in no case has the school processed the images obtained for the exercise of labor control functions, nor have sound recording systems or video surveillance been installed in areas designated for the rest or recreation of workers, such as changing rooms, restrooms, dining rooms, and similar places. It is necessary to reiterate that the decision to install the video cameras located at the main and side access of the school is based on strict security reasons, having been evaluated by the Board of Directors after an unauthorized access by two individuals occurred on a Saturday night in March of this year (...).

As Doc. No. 7 of the entry with registration number REGAGE23e00084470034, the delivery note for the supply of cameras 1 and 2 installed at the main and side access doors to the school is provided.

(...)

As Doc. No. 8 of the entry with registration number REGAGE23e00084470495, the two screenshots of

the areas within the field of vision of cameras 1 and 2 are provided.

(...) due to the installation of the software supplied by the installer of the cameras, as the Board of Directors of the school has delegated to that person the responsibility for managing any matters related to the cameras and is the only person authorized to access the images.

[...] As a security measure, (...).

As Doc. No. 9 of the entry REGAGE23e00084470495, a photograph of that table is provided, and it is noted that both the citizens requesting services from the school and the rest of the employees' workstations are located outside that office, which are the premises of the school (public service area and office area).

Regarding the retention period of the recorded images, it is reiterated that (...) and it is indicated that, after thirty days at most from the date of the image recording, the installed software automatically deletes them.

Finally, it is indicated that the viewing and/or recording of the images has not been entrusted to any third party outside the school, that the school only contracted ***COMPANY.1 for the physical installation of cameras 1 and 2, and that there is no maintenance and/or management contract for the video surveillance system with that company or any other.

Regarding cameras 3 and 4, the complainant party states that they were installed more than ten years ago and therefore, no documentation (invoices, delivery notes, etc.) of that installation has been kept, nor is there any maintenance and/or management contract for those video surveillance cameras with any company.

FIFTH: According to the report obtained from the AXESOR tool, which is recorded as a diligence issued in this file, the entity COLEGIO NOTARIAL DE ARAGÓN has a sales volume of €1,131,754 and has 9 employees.

LEGAL GROUNDS

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/39

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will become void, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

III

Preliminary Issues

It should be noted that, according to Article 4.1 of the GDPR, “personal data” means any information relating to an identified or identifiable natural person (“the data subject”); an identifiable natural person is one whose identity can be determined, directly or indirectly, in particular by reference to an identifier,

such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

For its part, Article 4.2 of the GDPR defines processing as “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction.”

In light of the above, in the present case and in accordance with the provisions of the aforementioned articles, it is recorded that the COLEGIO NOTARIAL DE ARAGÓN is carrying out the processing of personal data, specifically the fingerprint data of its employees, as a means of monitoring compliance with their working hours—attendance control and access to the College's premises—during the period from February 15, 2023, to December 1 of the same year.

The COLEGIO NOTARIAL DE ARAGÓN carries out this activity of processing personal data in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR, according to which the “data controller” or “controller” is the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.

As a continuation of the above, and in accordance with Article 70 of the LOPDGDD:

1. The following are subject to the sanctioning regime established in Regulation (EU) 2016/679 and in this organic law:

a) The controllers of the processing. (...)

Having established the above, it should be noted that Professional Colleges are public law corporations, protected by law and recognized by the State, with their own legal personality and full capacity to fulfill their purposes.

The Constitution establishes in its Articles 36 and 52 the normative bases through which public law corporations are to be regulated. For its part, the LPACAP states in its Article 2.4 that public law corporations “...shall be governed by their specific regulations in the exercise of the public functions that have been attributed to them by law or delegated by a public administration, and subsidiarily by this law.”

Also, Law 29/1998, of July 13, regulating contentious-administrative jurisdiction, affirms the public nature recognized for a public law corporation, as well as the scope of such consideration, when it establishes in its Article 2.c) that the contentious-administrative jurisdiction shall hear matters arising in relation to “The acts and provisions of public law corporations, adopted in the exercise of public functions.”

Thus, despite being classified as a public law corporation, it is necessary to keep in mind that, just as these entities are assigned the exercise of public functions—referred to by the aforementioned regulations—they can also exercise functions of a private law nature, to which a legal regime applies that takes into account the private nature—and not derived from the exercise of public functions—of their actions.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/39

In short, Public Law Corporations—among which is the respondent, in its capacity as a Professional College, in this case, Notarial—have a mixed nature that implies that, while they perform public functions, they also carry out activities and provide services under private law. Therefore, the legal regime of these organizations is necessarily complex, as it lacks uniformity and must adapt to the nature (public or private) of the activity carried out at any given time. However, it can be noted that the public functions to be exercised by Professional Colleges are essentially the regulation of professional

practice, which includes the exercise of sanctioning power and the control of compliance with ethical standards.

Thus, applying the above and regarding the facts raised in the complaint submitted and from which this agreement to initiate sanctioning proceedings arises, it can be concluded that we are faced with an action carried out by the respondent of a private nature.

IV

Biometric data and biometric templates as special categories of data

Section 14 of Article 4 of the GDPR defines biometric data as personal data obtained through specific technical processing, related to the physical, physiological, or behavioral characteristics of a natural person that allow or confirm the unique identification of that person, such as facial images or fingerprint data;

In the case at hand, the respondent claims that in the system installed by the College, biometric data is stored as biometric templates. The biometric system uses such mechanisms based on encryption technologies to prevent unauthorized reading, copying, modification, or deletion of biometric data. Thus, the fingerprint system ensures that it is impossible to obtain the actual image of the fingerprint with the pattern stored in the terminal reader, as no digital photograph of the fingerprint is taken; rather, a mathematical relationship is established between certain points of the fingerprint (singularities, characteristic points, or 'minutiae'), resulting in a set of numbers that subsequently serves to unequivocally identify each person.

At this point, it should be noted that the purpose of the processing, as indicated by the respondent, is the identification of the worker, in order to control access to the premises where they carry out their workday and, therefore, their compliance with it. Also, the respondent, when describing the system, confirms that it serves to unequivocally identify each person. Therefore, it must be concluded that we are dealing with the processing of personal data in accordance with the previously transcribed definition from Article 4.1 of the GDPR.

It should be pointed out, on the other hand, that the identification process necessarily includes the performance of several processing operations (data collection or capture, registration, storage, processing, comparison, authentication, conservation, deletion, limitation, etc.).

According to the definition provided by Article 4.14 of the GDPR, the processed biometric data is considered personal data as long as the purpose of the...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/39

treatment is the identification or authentication of a person - which allows or confirms the unique identification of that person - in the sense provided in Article 4.1 of the GDPR; a circumstance that, as we have already pointed out, occurs in the present case.

As noted in Opinion 4/2007 of the Article 29 Working Party, on the concept of personal data (WP136), dated 20/06/2007, biometric data can be defined as:

"... biological properties, physiological characteristics, personality traits or tics, which are, at the same time, attributable to a single person and measurable, even if the models used in practice to measure them technically involve a certain degree of probability. Typical examples of biometric data are those provided by fingerprints, retinal patterns, facial structure, voices, but also the geometry of the hand, venous structures, and even certain deeply rooted skills or other behavioral characteristics (such as handwriting, pulse rates, a particular way of walking or speaking, etc.). A particularity of biometric data is that they can be considered both as content of the information about a certain person (So-and-so has these fingerprints) and as an element to link information to a certain person (this object has been touched by someone who has these fingerprints and these fingerprints correspond to So-and-so; therefore, So-and-so has touched this object). As such, they can serve as "identifiers." Indeed, as they correspond to a unique person, biometric data can be used to identify that person. This dual nature is also present in the case of DNA data, which provide information about the human body and allow the

unequivocal identification of one, and only one, person.” (the underlining is ours).

In the case of the biometric templates generated in the system installed by the Council - that is, the system management software stores the hash (pattern or biometric template) provided by the fingerprint terminal, which is related to the end user with the employee's user ID in a table for biometric data - they constitute personal data since the process is based on assigning an identifier (the biometric template obtained by collecting the fingerprint samples of the workers at the time they access the premises of the responding party) that allows for the singularization of an individual - the worker - and distinguishes them from others, through “elements inherent to physical, physiological, genetic, psychological identity,” thanks to its comparison with the previously stored sample.

That is to say, a biometric template is a form of writing of a human biometric characteristic - in this case, a fingerprint - in such a way that it is interpretable by a machine efficiently and effectively for a specific purpose or purposes - in the case at hand, the installed access system and the software that allows the identification of the physical person whose biometric template corresponds to the worker whose fingerprint has been previously installed in the system.

Biometric systems are closely linked to a person, as they can use a specific unique property of an individual for their identification. Thus, each individual has unique fingerprints that show specific characteristics that can be measured to determine whether a fingerprint corresponds to a registered sample. Therefore, they are unique, permanent, or definitive over time, as they remain invariably tied to a person. Due to their

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/39

Given their special characteristics, it can be asserted that when these data are compromised, they have a more significant impact on the fundamental right to data protection of their holder compared to other types of personal data. Hence, the special relevance that must be granted to the guarantees adopted in their processing due to the particularly significant impact on the fundamental right to personal data protection of their holder.

It is from this perspective that the GDPR pronounces in its recital 51, which states the following:

Personal data that, by their nature, are particularly sensitive in relation to fundamental rights and freedoms deserve special protection, as the context of their processing could entail significant risks to fundamental rights and freedoms. Such personal data must include personal data revealing racial or ethnic origin, understanding that the use of the term “racial origin” in this Regulation does not imply the Union's acceptance of theories that attempt to determine the existence of separate human races. The processing of photographs should not be systematically considered processing of special categories of personal data, as they are only included in the definition of biometric data when the fact that they are processed by specific technical means allows for the unequivocal identification or authentication of a natural person.

Such personal data should not be processed unless their processing is permitted in specific situations contemplated in this Regulation, given that Member States may establish specific provisions on data protection in order to adapt the application of the rules of this Regulation to comply with a legal obligation or to fulfill a mission carried out in the public interest or in the exercise of public powers conferred on the data controller.

In addition to the specific requirements for that processing, the general principles and other rules of this Regulation must apply, especially regarding the conditions for the lawfulness of processing.

Exceptions to the general prohibition on processing those special categories of personal data must be explicitly established, among other things when the data subject gives their explicit consent or in the case of specific needs, particularly when the processing is carried out within the framework of legitimate activities by certain associations or foundations whose objective is to enable the exercise of fundamental freedoms.

For its part, Article 9 of the GDPR defines special categories of data as (...) personal data revealing ethnic or racial origin, political opinions, religious or philosophical beliefs, or trade union membership,

and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning the sexual life or sexual orientation of a natural person. Thus, it is worth noting that, i) in defining biometric data, Article 4.14 of the GDPR refers to data that "allow or confirm the unique identification" ii) that Article 9, when qualifying biometric data as a special category of personal data, establishes as the only "condition" that they aim for the unique identification of a natural person and iii) that the confirmation of an individual's identity occurs in both identification and authentication cases. Therefore, it must be concluded that the processing of biometric data constitutes a

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
18/39

Treatment of special categories of data. A conclusion that has been incorporated by the European Data Protection Board (EDPB) in its Guidelines 5/2022 on the use of facial recognition technology in law enforcement and by the AEPD itself in the guide on presence control treatments using biometric systems mentioned by the respondent.

In this regard, we highlight that the Court of Justice of the European Union (CJEU), in its judgment of August 1, 2022, in case C-184/20, establishes a broad interpretation of the concept of special categories of personal data (the emphasis is ours):

125 Furthermore, a broad interpretation of the concepts of "special categories of personal data" and "sensitive data" is supported by the objective of Directive 95/46 and the GDPR, which has been mentioned in paragraph 61 of this judgment, to ensure a high level of protection of the freedoms and fundamental rights of natural persons, in particular, their privacy, in relation to the processing of personal data that affects them (see, in this regard, the judgment of November 6, 2003, Lindqvist, C-101/01, EU:C:2003:596, paragraph 50).

126 Moreover, the contrary interpretation would oppose the purpose of Article 8(1) of Directive 95/46 and Article 9(1) of the GDPR, which is to ensure greater protection against such processing, which, due to the particular sensitivity of the data involved, may constitute, as derived from Recital 33 of Directive 95/46 and Recital 51 of the GDPR, a particularly serious interference with the fundamental rights to respect for private life and to the protection of personal data, guaranteed by Articles 7 and 8 of the Charter [see, in this regard, the judgment of September 24, 2019, GC and others (Removal of links to sensitive data), C-136/17, EU:C:2019:773, paragraph 44].

It must therefore be concluded that, in the case analyzed in this initiation of sanctioning procedure agreement, we are dealing with the processing of a special category of personal data—biometric data—of which the respondent is responsible, as previously argued.

V

Conditions for the processing of special categories of data

Article 9 of the aforementioned GDPR, when defining special categories of data, starts from the general principle of prohibition of their processing:

1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

The prohibition of processing that applies to special categories of data is established in general terms, and unless some of the circumstances provided for in paragraph 2 of that provision may apply (the emphasis is ours):

2. Paragraph 1 shall not apply when one of the following circumstances applies:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
19/39

- a) the data subject has given explicit consent to the processing of such personal data for one or more of the specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 cannot be lifted by the data subject;
- b) the processing is necessary for compliance with obligations and the exercise of specific rights of the data controller or the data subject in the field of employment law and social security and protection, to the extent that it is authorized by Union law or Member State law or a collective agreement under Member State law that establishes adequate safeguards for the respect of fundamental rights and the interests of the data subject;
- c) the processing is necessary to protect vital interests of the data subject or another natural person, in the event that the data subject is not physically or legally capable of giving consent;
- d) the processing is carried out, in the context of its legitimate activities and with appropriate safeguards, by a foundation, an association, or any other non-profit body, whose purpose is political, philosophical, religious, or trade union, provided that the processing relates exclusively to the current or former members of such bodies or to persons who have regular contact with them in relation to their purposes and provided that the personal data are not disclosed outside of them without the consent of the data subjects;
- e) the processing concerns personal data that the data subject has made manifestly public;
- f) the processing is necessary for the establishment, exercise, or defense of legal claims or when courts are acting in their judicial capacity;
- g) the processing is necessary for reasons of substantial public interest, based on Union or Member State law, which must be proportionate to the aim pursued, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;
- h) the processing is necessary for purposes of preventive or occupational medicine, the assessment of the worker's capacity to work, medical diagnosis, the provision of health or social care assistance or treatment, or the management of health and social care systems and services, based on Union or Member State law or under a contract with a health professional and without prejudice to the conditions and safeguards laid down in paragraph 3;
- i) the processing is necessary for reasons of public interest in the area of public health, such as protection against serious cross-border threats to health, or to ensure high standards of quality and safety of health care and of medicines or medical products, based on Union or Member State law that establishes adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy;
- j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, based on Union or Member State law, which must be proportionate to the aim pursued, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

20/39

essential the right to data protection and establish adequate and specific measures to protect the interests and fundamental rights of the data subject. (...)

According to the statement made by the respondent, it considers that the processing of the fingerprints of its employees for labor control purposes is covered by paragraph b of article 9.2 previously transcribed, and this within the framework of the obligations to record working hours that arise from articles 20 and 34 of the Workers' Statute, adopted by Royal Legislative Decree 2/2015, of October 23, in the wording given by Royal Decree-Law 8/2019, of March 8, on urgent measures for social protection and the fight against labor precariousness in working hours. These provisions, in what is relevant here, state the following:

Article 20. Direction and control of labor activity.

1. The worker shall be obliged to perform the agreed work under the direction of the employer or the person to whom the employer delegates.
2. In fulfilling the obligation to work assumed in the contract, the worker owes the employer the diligence and collaboration in the work that is marked by legal provisions, collective agreements, and the orders or instructions adopted by the employer in the regular exercise of their management powers, and, in their absence, by customs and practices. In any case, the worker and the employer shall submit in their reciprocal performances to the requirements of good faith.
3. The employer may adopt the measures they deem most appropriate for monitoring and controlling to verify the compliance by the worker with their labor obligations and duties, maintaining due consideration for their dignity and taking into account, where applicable, the real capacity of workers with disabilities.
4. The employer may verify the health status of the worker claimed by them to justify their absences from work, through examination by medical personnel. The worker's refusal to undergo such examinations may result in the suspension of any economic rights that may exist on the part of the employer due to such situations.

Article 34. Working hours.

(...)

9. The company shall guarantee the daily recording of working hours, which must include the specific start and end times of the working day for each worker, without prejudice to the flexibility in working hours established in this article.

Through collective bargaining or company agreement or, in the absence thereof, the decision of the employer after consulting the legal representatives of the workers in the company, this working hours record shall be organized and documented.

The company shall retain the records referred to in this provision for four years and they shall remain available to the workers, their legal representatives, and the Labor and Social Security Inspectorate.

Analyzing the aforementioned provisions, we must indicate the terms in which article 9.2 b) of the GDPR addresses the described circumstance and which would allow for the lifting of the prohibition on processing special categories of data:

1. The processing must be necessary for the fulfillment of obligations and the exercise of specific rights of the data controller or the

21/39

interested party in the field of Labor Law and social security and protection

2.

The processing must be authorized – to the extent that it is authorized – by the Law of the Union of the Member States or a collective agreement in accordance with the Law of the Member States.

3.

The instrument through which such authorization is articulated must establish adequate guarantees for the respect of fundamental rights and the interests of the interested party.

In addition to lifting the prohibition on its processing, the controller must also demonstrate that its processing can be carried out because one of the legal bases legitimizing the processing contained in Article 6.1 of the GDPR applies, which are a general requirement for the processing of any personal data. That is, the existence of an exception that hypothetically allows lifting the prohibition on processing biometric data will not be sufficient; it does not replace the need for there to also be a legal basis in the case of biometrics. The controller must be in a position to demonstrate that both conditions are met.

The responding party understands that the processing carried out finds its legal basis in Article 6.1 b) of the GDPR, the terms of which are as follows:

1. Processing shall be lawful only if at least one of the following conditions is met (...)

b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;

In the case at hand, while it may be understood that there would be a basis for legitimization as provided in Article 6.1 b), the existence of a basis for legitimization of the processing could only be considered if a circumstance that lifted the prohibition on processing special categories of personal

data, in this case biometric data, were appreciated.

VI

Obligation not fulfilled. Article 9 GDPR

According to what we have been analyzing, we are faced with the processing of special categories of data – fingerprints of the employees of the responding party – for which the general prohibition on processing provided in Article 9.1 of the GDPR applies.

Notwithstanding the above, as already indicated, this general prohibition on processing can be lifted by one of the circumstances provided for in paragraph 2 of the same Article 9 GDPR.

In analyzing the application of these circumstances, it is important to remember that the CJEU has already ruled on the restrictive nature that must be granted to the exceptions to the prohibition on processing special categories of data. For example, in its judgment of July 4, 2023, delivered in case C-252/21, it states the following (the underlining is ours):

76 On the other hand, to the extent that it establishes an exception to the principle of prohibition of processing special categories of personal data, Article 9, paragraph 2, of the GDPR must be interpreted restrictively (see, C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/39

In this regard, the judgments of September 17, 2014, *Baltic Agro*, C-3/13, EU:C:2014:2227, paragraph 24 and cited case law, and of June 6, 2019, *Weil*, C-361/18, EU:C:2019:473, paragraph 43 and cited case law.

The responding party claims as a circumstance that allows the processing of biometric data of its workers that the processing is necessary for the fulfillment of obligations and the exercise of specific rights of the data controller or the data subject in the field of labor law and social security and protection, to the extent that it is authorized by the law of the Union of the Member States or a collective agreement under the law of the Member States that establishes adequate guarantees for the respect of fundamental rights and the interests of the data subject; (Article 9.2 b)

Taking into account the terms in which this provision is pronounced and that the state regulation that the responding party considers as enabling for the processing of a special category of biometric data of its workers—the fingerprint—only provides for the achievement of one objective—the control of working hours through its registration—and does not indicate that it should or can be done through the processing of biometric data, in addition to the fact that the necessity of the same for the achievement of the intended objective cannot be appreciated, it must be understood that, without prejudice to what results from the instruction, it would not comply with what is dictated by Article 9.2 b) GDPR.

VII

Classification of the infringement of Article 9 and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

For the sole purposes of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic

law being present.

VIII

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state the following:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

24/39

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the graduated criteria established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continuous nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution

mechanisms, in cases where there are disputes between them and any interested party.”

In the present case, considering the seriousness of the possible infringement, especially regarding the consequences that its commission causes to the affected parties, and the circumstances present in this file, the imposition of a fine would be appropriate.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the circumstances provided for in Article 83.2 a), b), and g) should be taken into account in the sanction to be imposed:

a) The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered. In this regard, and as argued, there has been processing of biometric data—classified within the special categories of data—which, by its nature, affects more incisively the fundamental right to data protection of the affected parties, and therefore deserves a response commensurate with the harm.

b) The intentionality or negligence in the infringement. As indicated, the decision to initiate the processing of biometric data was not preceded by an adequate assessment of the risks concerning the purpose of the processing and the category of the data involved, leading to a conclusion of negligent conduct by the party being claimed. Similarly, and despite the deficiencies in the functioning of the installed system,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

25/39

detected since its inception, the system has remained in force for several months, being a conscious decision of the responding party.

g) the categories of personal data affected by the infringement. In this case, we are dealing with the processing of biometric data, considered special categories of data, deserving of a particularly high level of protection due to the risks that arise for the data subject from the processing.

No aggravating circumstances are taken into account.

The balance of the circumstances contemplated in Article 83.2 of the GDPR, with respect to the infringement committed by violating the provisions of Article 9 of the GDPR, initially allows for the imposition of an administrative fine of 10,000.00 euros (TEN THOUSAND EUROS).

Therefore, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, it is considered that the known facts could constitute an infringement, attributable to the responding party for violating the aforementioned provision.

IX

On the necessity to carry out and exceed a prior and adequate impact assessment for the processing

a) Obligation to carry out a Data Protection Impact Assessment (DPIA)

According to the provisions of Recital 84 of the GDPR (the underlining is ours)

In order to enhance compliance with this Regulation in cases where processing operations are likely to result in a high risk to the rights and freedoms of natural persons, it shall be the responsibility of the data controller to carry out an impact assessment regarding data protection, which evaluates, in particular, the origin, nature, specificity, and severity of such risk. The result of the assessment must be taken into account when deciding on the appropriate measures to be taken in order to demonstrate that the processing of personal data is in compliance with this Regulation. If a data protection impact assessment shows that the processing operations involve a high risk that the controller cannot mitigate by means of appropriate measures in terms of available technology and implementation costs, the supervisory authority must be consulted prior to the processing.

Subsequently, the GDPR, in its Recital 90, refers to DPIA in the following terms:

In such cases, the controller must carry out, prior to the processing, a data protection impact assessment in order to evaluate the particular severity and likelihood of the high risk, taking into account the nature, scope, context, and purposes of the processing and the origins of the risk.

Such impact assessment must include, in particular, the measures, safeguards

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

26/39

and mechanisms provided to mitigate the risk, ensure the protection of personal data, and demonstrate compliance with this Regulation.

For its part, Article 35 of the GDPR - Data Protection Impact Assessment - states the following (the underlining is ours):

1. When it is likely that a type of processing, particularly if it uses new technologies, by its nature, scope, context, or purposes, poses a high risk to the rights and freedoms of natural persons, the data controller shall carry out, prior to the processing, an assessment of the impact of the processing operations on the protection of personal data. A single assessment may address a series of similar processing operations that pose similar high risks.

2. The data controller shall seek the advice of the data protection officer, if appointed, when carrying out the data protection impact assessment.

3. The data protection impact assessment referred to in paragraph 1 shall be required in particular in the case of:

a) systematic and comprehensive evaluation of personal aspects of natural persons based on automated processing, including profiling, and on which decisions are based that produce legal effects concerning the natural persons or similarly significantly affect them;

b) large-scale processing of special categories of data referred to in Article 9, paragraph 1, or of personal data relating to criminal convictions and offenses referred to in Article 10, or

c) systematic large-scale monitoring of a publicly accessible area.

4. The supervisory authority shall establish and publish a list of the types of processing operations that require a data protection impact assessment in accordance with paragraph 1. The supervisory authority shall communicate these lists to the Committee referred to in Article 68.

5. The supervisory authority may also establish and publish a list of types of processing that do not require data protection impact assessments. The supervisory authority shall communicate these lists to the Committee.

6. Before adopting the lists referred to in paragraphs 4 and 5, the competent supervisory authority shall apply the consistency mechanism provided for in Article 63 if those lists include processing activities related to the offering of goods or services to data subjects or the monitoring of their behavior in several Member States, or processing activities that may substantially affect the free movement of personal data within the Union.

7. The assessment shall include at least:

a) a systematic description of the intended processing operations and the purposes of the processing, including, where applicable, the legitimate interest pursued by the data controller;

b) an evaluation of the necessity and proportionality of the processing operations in relation to their purpose;

c) an assessment of the risks to the rights and freedoms of the data subjects referred to in paragraph 1, and

d) the measures envisaged to address the risks, including safeguards, security measures, and mechanisms to ensure the protection of personal data, and to demonstrate compliance with this Regulation, taking into account

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

27/39

the legitimate rights and interests of the interested parties and other affected individuals.

8. Compliance with the approved codes of conduct referred to in Article 40 by the corresponding

controllers or processors shall be duly taken into account when assessing the implications of the processing operations carried out by such controllers or processors, particularly for the purposes of the data protection impact assessment.

9. Where appropriate, the controller shall seek the opinion of the interested parties or their representatives regarding the intended processing, without prejudice to the protection of public or commercial interests or the security of the processing operations.

10. When the processing, in accordance with Article 6, paragraph 1, letters c) or e), is based on Union law or the law of the Member State applicable to the controller, such law regulates the specific processing operation or set of operations in question, and a data protection impact assessment has already been carried out as part of a general impact assessment in the context of the adoption of such legal basis, paragraphs 1 to 7 shall not apply unless Member States consider it necessary to proceed with such prior assessment before the processing activities.

11. If necessary, the controller shall examine whether the processing is in accordance with the data protection impact assessment, at least when there is a change in the risk posed by the processing operations.

The DPIA has emerged since the entry into force of the GDPR as a new requirement for controllers of "high-risk" processing. In this regard, the processing of biometric data is considered high risk according to the provisions of paragraph 4 of Article 35 and is included among the processing activities listed in the document "Lists of types of data processing that require a data protection impact assessment," published by the AEPD in development of this provision. Thus, the high-risk consideration of the processing of these data is supported by the fact that biometric data meets the criteria corresponding to numbers 4, 5, and 10 of the aforementioned list (processing involving the use of special categories of data; the use of biometric data; and those involving the use of new technologies or an innovative use of established technologies). It should be noted that this list was published on 18/05/2019; therefore, well in advance of the processing that gives rise to this initiation of sanctioning procedure.

The DPIAs aim to ultimately identify the risks associated with certain personal processing in relation to their impact on the fundamental right to the protection of personal data of their holders and, in this sense, it should be understood that it is configured as an obligation of the controller—considering the principle of proactive responsibility—that, due to its own characteristics, must opt for a risk analysis approach from the design and by default, in order to identify them, determine the likelihood of their occurrence and their impact, and foresee measures and guarantees that eliminate or, at least, mitigate the detected risks, preventing their occurrence—must be carried out prior to the processing and continuously adapted in response to the evolution of the risks and threats that may affect the processing.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
28/39

With this same logic, it is not enough to formally carry out a DPIA; it must also contain, at a minimum, the information outlined in Article 35.7 of the GDPR, and it must be thorough and considered valid. In other words, it is not merely a formal obligation that is deemed fulfilled by the mere execution of a DPIA, but rather a material obligation, ensuring that it contains a solid and comprehensive analysis of the intended processing, the risks that it may entail, and the measures deemed appropriate to avoid or, at least, minimize them. All of this must occur prior to the processing, so that the conclusions of the DPIA can be taken into account in its design, thereby complying with the principle of data protection by design and by default as set forth in Article 25 of the GDPR.

The analysis that the DPIA conducts regarding the concurrence of the necessary criteria of necessity, suitability, and proportionality of the processing will be especially relevant. This is because the data controller intending to establish a processing of personal data of this nature must ensure that it surpasses what has been termed in jurisprudence as "the triple test of proportionality," particularly considering whether the processing of biometric data is necessary, suitable, and proportional.

If there are other non-biometric systems that allow achieving the same purpose of effectively identifying-verifying the identity of individuals, it will not be necessary to initiate biometric processing, and therefore, the implementation of this system will be considered contrary to the GDPR. This judgment must be the starting point of the analysis, as only if these methods surpass the aforementioned triple test will compliance with other requirements or guarantees be demanded. In short, the processing of biometric data can never be initiated without a valid DPIA being prepared prior to the processing.

a) The DPIA conducted by the responding party

As established by the responding party, there is evidence of a DPIA dated February 6, 2023, which, although prior, is very close to the decision regarding the implementation of the system agreed upon by the Board of Directors of the responding party on February 14. Furthermore, according to the responding party itself, it is in the days following that the process of configuring the system by the provider begins (recording fingerprints, work schedules to implement them in the system, etc.). These circumstances raise the preliminary and relevant question of whether the decision regarding the implementation of a system such as the one analyzed was already advanced at the time the DPIA was prepared and whether the provider was already identified – and, therefore, the characteristics of the system were known. This is because only in this way would it seem reasonable that the installation of the system could have been carried out almost immediately after the decision was made. Similarly, following this same reasoning, it would seem at least doubtful that the DPIA was prepared without total knowledge of these facts – minimally advanced decision and identified provider – to such an extent that it could at least be questioned whether the DPIA was conducted taking into account the considerations that must be considered and that have been previously indicated.

Having established the above, from the DPIA conducted, we consider it appropriate to highlight the following points:

- In the analysis of the so-called Risk Scenario R02 - there is a violation of the confidentiality of personal data - it is noted as a proposed measure the necessity of conducting a data protection impact assessment.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

29/39

-

Regarding Risk Scenario R04 - Biometric data is stored for an undefined period of time - the following measures are proposed:

- o Biometric data must be deleted when they are no longer linked to the purpose that motivated their processing in accordance with the applicable regulations (records must be retained for four years), and, if possible, automated data deletion mechanisms should be implemented.

- o Maintain documentation on biometric data only for the time required by the applicable labor regulations.

- In relation to the analysis of the necessity of the processing, we highlight the following aspects:

a. Suitability Assessment

In relation to the suitability assessment, it must be clarified whether the processing of biometric data is necessary to respond to an identified need, that is, whether it is essential to satisfy that need, and not merely the most appropriate or cost-effective, with such suitability being determined by its effectiveness in minimizing the risk for which it is applied.

In this regard, it is considered that this processing of biometric data allows the College to comply, with security guarantees, with the obligations of labor management regarding the time control of attendance and access of its employees to its premises in order to comply with Royal Decree-Law 8/2019, of March 8, on urgent measures for social protection and the fight against labor precariousness during working hours, which is why the measure is deemed suitable.

b. Necessity Assessment

In relation to the necessity assessment, it must be clarified the likelihood that the processing will be

effective in addressing the need in question regarding the processing of fingerprint data to minimize risks of non-compliance with the obligations of the College regarding labor management of its employees' time control.

Thus, the necessity of the processing by the College is based on its obligation to ensure and minimize risks of security, objectivity, and reliability in the time recording of its employees, based on its responsibility and obligation established by the Workers' Statute. It should be noted that prior to Royal Decree-Law 8/2019, labor time control in the College was carried out manually using a paper sheet on which employees daily recorded their entry and exit times from the offices, but this recording system has been considered not objective and reliable for certifying such times, especially when in the case of the College, which is the employer, the special need for the implementation of the fingerprint reading system is also justified because the members of the Board of Directors of the College, composed of nine Notaries, carry out their working hours not in the College, but in their own Notaries where they are assigned, located in any town in the Autonomous Community of Aragon.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

30/39

Furthermore, this necessity is also supported by the fact that the fingerprint system will ensure that it is impossible to obtain the actual image of the fingerprint with the pattern stored in the terminal reader, as no digital photograph of the fingerprint will be taken; instead, a mathematical relationship must be established between certain points of the fingerprint (singularities, characteristic points, or 'minutiae'), resulting in a set of numbers that will subsequently serve to unequivocally identify each employee.

c. Proportionality assessment: analysis of the risk-benefit balance

Regarding the proportionality assessment of the processing, this is determined by the possibility of applying other less intrusive measures that could provide the same degree of effectiveness. To this end, the application of other measures for monitoring employee working hours that could minimize risks to the rights and freedoms of employees using non-biometric systems has been analyzed, such as the use of cards or applications with personal alphanumeric codes or passwords, noting that these would not ensure the School a reliable verification of the unique identification and authentication of users because they could be easily exchanged. Therefore, given the impossibility of applying other less intrusive measures that could provide the same degree of effectiveness, it can be stated that the processing carried out through the use of fingerprint verification systems for the employees of the School, applying the corresponding data protection measures, is a proportional measure to respond to the necessity of the processing. To reach this conclusion, a weighing of the conflicting rights involved in the case of capturing fingerprints as a measure of monitoring the working hours of the employees of the School has been carried out. On one hand, the right to data protection, and on the other hand, the right to the labor control powers of the School established by labor regulations - specifically, Article 20.3 of the Workers' Statute, which establishes that "The employer may adopt the measures it deems most appropriate for surveillance and control to verify compliance by the worker with their obligations and labor duties, taking due consideration of their dignity in its adoption and application, and taking into account, where appropriate, the real capacity of workers with disabilities" - considering that the right to labor control prevails at all times over the right to data protection, without prejudice to the fact that the application of adequate data protection guarantees is essential, since the GDPR also requires that in these cases the regulation allowing this processing must also establish such guarantees.

X

Unfulfilled obligation. Art. 35 GDPR

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

31/39

The obligation to assess the suitability, necessity, and proportionality of the processing in the DPIA

according to Article 35.7 b) of the GDPR must be interpreted in accordance with the provisions established by the repeated jurisprudence of our Constitutional Court regarding the necessity to ascertain that any restrictive measure of fundamental rights (processing operations that include biometric data in this case) surpasses what is referred to as "the triple test of proportionality."

This implies that, first and foremost, it is necessary to ascertain whether it meets the following three requirements or conditions referred to by the Constitutional Court in its ruling 14/2003, of January 28: "to verify whether a restrictive measure of a fundamental right surpasses the test of proportionality, it is necessary to ascertain whether it meets the following three requirements or conditions: whether such a measure is capable of achieving the proposed objective (suitability test); whether, furthermore, it is necessary, in the sense that there is no other more moderate measure to achieve such purpose with equal effectiveness (necessity test); and, finally, whether it is balanced or proportionate, as it derives more benefits or advantages for the general interest than harms to other conflicting goods or values (strict sense proportionality test)."

-

Suitability. In relation to the suitability test, it must start from the adequacy of the system implemented to achieve the purposes of the processing, in this case, the control of attendance and access to the premises of the College by its employees. It is noteworthy that, according to the claims made by the responding party, the system failed from the moment of its implementation; by the time the response to the complaint was provided, it was indicated that to date, the system had not been fully operational due to various incidents related to the installed software and the server of the College itself, and during the transfer proceedings, it was stated that once the corresponding software of the system was installed on the College's server, the fundamental part of the functionalities provided by the product did not work correctly as the system did not generate the corresponding reports on the daily collection by the reader of the employees' time data, that is, the reports on the employees' entry and exit times, which were evidently the main reason for such a system. Secondly, the installation of said software also interfered with the functioning of other applications already installed on that server, which led the College to first disable the software and subsequently uninstall it from that server.

We can therefore affirm that the installed system was not suitable for fulfilling the intended purpose, highlighting its interference with applications that were already operational in the responding party; a circumstance that could have been detected before proceeding with the installation of the system.

-

Necessity. The responding party argues that the processing was necessary to effectively control the compliance with the working hours of the employees. All of this taking into account the special characteristics of the NOTARIAL COLLEGE OF ARAGÓN, where the members of the Board of Directors do not regularly meet physically in its premises. In this regard, it should be recalled that necessity should not be confused with convenience and that a measure consisting of the processing of high-risk personal data cannot be articulated based on satisfaction.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
32/39

of the interests of only one of the parties. On the other hand, although the responding party seems to link the regular absence of its Board members in its offices with the difficulties in controlling compliance by workers with their working hours, the file includes the position of Chief Officer of the College, which is understood to perform its working hours in the College's offices, precisely to carry out the functions associated with such positions.

-

Proportionality. The responding party claims to have analyzed other less intrusive options that would allow achieving the proposed objective with the same level of effectiveness. It should be noted in this regard that Royal Decree-Law 8/2019, of March 8, on urgent measures for social protection and the fight against labor precariousness in working hours, which introduced section 9 of article 34 of the Workers' Statute—related to the registration of working hours and used as the legal basis for the

implementation of the measure—came into force, according to its final provision sixth, on 12/05/2019.

4. The working hours registration established in section 9 of article 34 of the consolidated text of the Workers' Statute, approved by Royal Legislative Decree 2/2015, of October 23, according to the wording given to it by article 10 of this royal decree-law, will be applicable two months after its publication in the "Official State Gazette."

Considering that the implementation of the treatment subject to this initiation of sanctioning procedure was agreed almost four years later, it can be considered that, until that moment, the system that had been implemented was deemed adequate. It is also noteworthy that, within the framework of the investigative actions carried out, the responding party states that the College has decided to use a less intrusive time control system for data protection, which will consist of a computer software program that will allow the employee to clock in using a numerical code once they log in with the corresponding computer assigned to each employee.

XI

Classification of the infringement of article 35 of the GDPR and qualification for the purposes of prescription

Article 83.4 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with section 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the data controller and the processor under articles 8, 11, 25 to 39, 42, and 43;
(...)

For its part, the LOPDGDD in its article 71, Infringements, states that:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

33/39

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

For the sole purpose of the statute of limitations, Article 73 of the LOPDGDD establishes the following:

"According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall be subject to a two-year statute of limitations, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

t) The processing of personal data without having conducted the impact assessment of the processing operations on the protection of personal data in cases where it is required.

XII

Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;

- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

34/39

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factors applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the graduated criteria established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In the present case, considering the seriousness of the possible infringement, particularly taking into account the consequences that its commission causes to the affected parties, the imposition of a fine, in addition to the adoption of measures, if appropriate, would be warranted.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the circumstances provided for in Article 83.2 a), b), and g) should be taken into account in the sanction to be imposed.

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered. In this regard, and as argued, there has been processing of biometric data—included within the special categories of data—which, by their nature, affect more incisively the fundamental right to data protection of the affected parties, which consequently deserves a response commensurate with the harm.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

a) the intentionality or negligence in the infringement. As indicated, the decision to initiate the processing of biometric data was not preceded by an adequate assessment of the risks in relation to the purpose of the processing and the category of the data involved, leading to a conclusion of negligent conduct by the party being claimed. Likewise, despite the deficiencies in the functioning of the installed system, detected from its inception, the system remained in effect for several months, being a conscious decision by the party being claimed.

g) the categories of personal data affected by the infringement: In this case, we are dealing with the processing of biometric data, considered special categories of data, deserving of a particularly high level of protection due to the risks that arise from the processing for their holder.

Aggravating circumstances are not taken into account.

The balance of the circumstances contemplated in Article 83.2 of the GDPR, with respect to the infringement committed by violating the provisions of Article 35 of the GDPR, allows for an initial administrative fine of 10,000.00 euros (TEN THOUSAND EUROS) to be set.

Therefore, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, it is considered that the known facts could constitute an infringement, attributable to the party being claimed for violating the aforementioned provisions.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the NOTARIAL COLLEGE OF ARAGÓN, with NIF Q5063003G, for the alleged infringement of Articles 9 and 35 of the GDPR, classified, respectively, in Article 83.5 a) and 83.4 a) of the GDPR.

SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Sub-Directorate for Data Inspection in the proceedings prior to the initiation of the present sanctioning procedure.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
36/39

FOURTH: For the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be an administrative fine of 10,000.00 euros for the infringement of Article 9 of the GDPR and an administrative fine of 10,000.00 euros for the infringement of Article 35 of the GDPR, totaling 20,000.00 euros, without prejudice to what results from the instruction.

FIFTH: NOTIFY this agreement to the NOTARIAL COLLEGE OF ARAGÓN, with NIF Q5063003G, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document. In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be established at 16,000.00 euros, resolving the procedure with the imposition of this sanction. Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at 16,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility,

provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be established at 12,000.00 euros. In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction. For these purposes, in case of opting for any of them, it must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction indicating which of the two reductions it is opting for or if it is for both. In the event that it chooses to proceed with the voluntary payment of any of the amounts indicated above (16,000.00 euros or 12,000.00 euros), it must do so by depositing it into account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is adhering.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

37/39

Likewise, it must send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited. In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to it will be carried out exclusively electronically, through the Unique Enabled Electronic Address (dehu.redsara.es) and the Electronic Headquarters (sedeagpd.gob.es), and that, if it does not access them, its rejection will be recorded in the file, considering the procedure completed and continuing with the process. It is informed that it can identify an email address before this Agency to receive notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

1479-031024

Mar España Martí

Director of the Spanish Agency for Data Protection

SECOND: On November 22, 2024, the respondent has proceeded to pay the sanction in the amount of 12,000 euros making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement and its legal qualification.

LEGAL GROUNDS

I

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

38/39

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and

the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

Accordingly,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202304834, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to the NOTARIAL COLLEGE OF ARAGÓN.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

936-151024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es